

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 29-006
Amendments to Title 10 of the Chickasaw Nation Code
(Corrections)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted laws codified in Title 10 of the Chickasaw Nation Code, and

WHEREAS, the Tribal Legislature desires to amend those laws.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 10 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“CHAPTER 1
GENERAL PROVISIONS

<u>SECTION 10-101.1</u>	<u>RESERVED.</u>
<u>SECTION 10-101.2</u>	<u>NEED EXISTS.</u>
<u>SECTION 10-101.3</u>	<u>AUTHORITY.</u>
<u>SECTION 10-101.4</u>	<u>DEFINITIONS.</u>
<u>SECTION 10-101.5</u>	<u>APPROVED DEPOSITORIES REQUIRED.</u>
<u>SECTION 10-101.6</u>	<u>FIDUCIARY DELEGATED.</u>
<u>SECTION 10-101.7</u>	<u>SECURED DEPOSITS REQUIRED.</u>
<u>SECTION 10-101.8</u>	<u>JUDGMENT FUNDS INVESTMENT.</u>
<u>SECTION 10-101.9</u>	<u>TRUST FUNDS INVESTMENT.</u>
<u>SECTION 10-101.10</u>	<u>SURPLUS FUNDS INVESTMENT.</u>
<u>SECTION 10-101.11</u>	<u>RECOGNIZED ACCOUNTING STANDARDS.</u>
<u>SECTION 10-101.12</u>	<u>MONTHLY FINANCIAL STATEMENTS.</u>
<u>SECTION 10-101.13</u>	<u>RECORDS RETENTION PROGRAM.</u>
<u>SECTION 10-101.14</u>	<u>VERIFIED CLAIMS.</u>
<u>SECTION 10-101.15</u>	<u>CLAIM PROCESSING POLICIES.</u>
<u>SECTION 10-101.16</u>	<u>IMPREST FUNDS.</u>
<u>SECTION 10-101.17</u>	<u>CHANGE FUND.</u>
<u>SECTION 10-101.18</u>	<u>AUDITS PERFORMED BY CPA.</u>

**CHAPTER 2
BUDGETING AND APPROPRIATIONS**

<u>SECTION 10-201.1</u>	<u>APPROPRIATIONS NOT REQUIRED.</u>
<u>SECTION 10-201.2</u>	<u>CONSOLIDATED GOVERNMENTAL BUDGET FORMULATION.</u>
<u>SECTION 10-201.3</u>	<u>DEPARTMENT BUDGET AUTHORITY.</u>
<u>SECTION 10-201.4</u>	<u>DEVELOPMENT BUDGET.</u>
<u>SECTION 10-201.5</u>	<u>LEGISLATIVE REVIEW OF BUDGET.</u>
<u>SECTION 10-201.6</u>	<u>PUBLIC HEARINGS.</u>
<u>SECTION 10-201.7</u>	<u>CONDUCT OF HEARINGS.</u>
<u>SECTION 10-201.8</u>	<u>TESTIMONY AT HEARINGS.</u>
<u>SECTION 10-201.9</u>	<u>TESTIMONY FROM THE EXECUTIVE DEPARTMENT.</u>
<u>SECTION 10-201.10</u>	<u>TESTIMONY ALLOWED.</u>
<u>SECTION 10-201.11</u>	<u>QUESTIONING OF WITNESSES.</u>
<u>SECTION 10-201.12</u>	<u>CONCLUSION OF HEARING.</u>
<u>SECTION 10-201.13</u>	<u>FINALIZATION OF HEARING RECORD.</u>

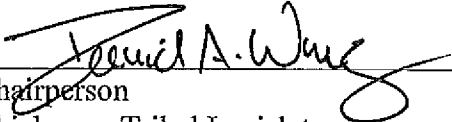
**CHAPTER 3
BONDS AND INDEBTEDNESS**

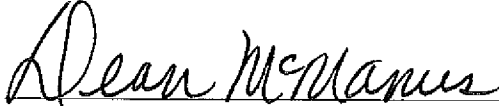
<u>SECTION 10-301.1</u>	<u>OFFICIALS AND EMPLOYEES BONDS, REQUIRED.</u>
<u>SECTION 10-301.2</u>	<u>BONDS PURCHASED FROM LICENSED COMPANY.</u>
<u>SECTION 10-301.3</u>	<u>CREDIT EXTENSION AUTHORIZED.</u>
<u>SECTION 10-301.4</u>	<u>LIMITED WAIVER OF SOVEREIGNTY, HOW AUTHORIZED.</u>

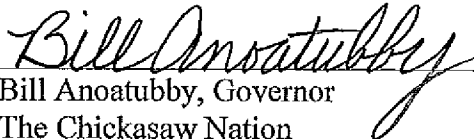
**ARTICLE B
GAMING TAX**

<u>SECTION 10-602.1</u>	<u>TITLE.</u>
<u>SECTION 10-602.2</u>	<u>FINDINGS.</u>
<u>SECTION 10-602.3</u>	<u>DEFINITIONS.</u>
<u>SECTION 10-602.4</u>	<u>AUTHORITY, AMENDMENT OF PRIOR LAW.</u>
<u>SECTION 10-602.5</u>	<u>TAX RATE ESTABLISHED.</u>
<u>SECTION 10-602.6</u>	<u>EFFECTIVE IMMEDIATELY.</u>
<u>SECTION 10-602.7</u>	<u>REPEAL OF CONFLICTING LAW."</u>

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 17, 2012, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 17 2012

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 29-006
Amendments to Title 10 of the Chickasaw Nation Code
(Corrections)

Explanation: **Explanation:** This resolution corrects section numbers in Title 10 of the Chickasaw Nation Code.

Presented By: Legislative Committee